

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

Case:

**DECLARATION OF PLAINTIFF
FRANCISCUS DYLAN ROSARIO IN
SUPPORT OF OPPOSITION**

Franciscus Dylan Rosario v. CSAA Insurance Exchange

Case No.: CGC-25-631802

Hearing: April 13, 2026

Executed at: San Francisco, California

I, Franciscus Dylan Rosario, declare:

1. I am the Plaintiff in this action, suing in pro per. I have personal knowledge of the facts stated below except where stated as matters of information and belief, and as to those I believe them to be true based on the reasons stated.
2. This declaration is filed in support of Plaintiff's Opposition to Defendant's Special Motion

to Strike (Anti-SLAPP) and Demurrer and is limited to facts, document authentication where stated, and responses to themes in Defendant's request for judicial notice and declaration. Legal argument appears in Plaintiff's memorandum of points and authorities and Appendix A thereto, filed concurrently herewith.

3. I am familiar with the operative pleading currently before the Court (the First Amended Complaint) and, if the Court grants leave, the proposed Second Amended Complaint offered to clarify that the gravamen of the claims targets alleged institutional failures to investigate and alleged concealment, with communications offered as corroboration.
4. I have reviewed Defendant's Memorandum of Points and Authorities in Support of Special Motion to Strike lodged in this action as court file no. 10152120, together with related defense papers identified on their face (Notice of Motion, Request for Judicial Notice, and supporting declaration).
5. Based on my review of the trial and hearing record in the underlying personal injury action and related proceedings (including transcripts and orders I have obtained or reviewed in preparing this case), I believe the following record facts are accurately stated for purposes of this motion practice; the Court may consider the cited locations if it elects to review the record:
 - 5.1. The underlying action involved a motor vehicle incident; liability and damages were contested.
 - 5.2. Materials in the record include a 911 recording in which the driver made statements about contact with a person on a bicycle; I rely on that recording and related materials as part of my fraud and concealment theory in this action.
 - 5.3. Discovery and hearing transcripts reflect production of certain materials to prior defense counsel and statements in court concerning timing of receipt of records; I rely on those events as part of my theory that relevant materials were known or available earlier than as represented in later proceedings.
 - 5.4. I suffered economic and business harms separate from the personal injury judgment in the underlying case, including lost or impaired business opportunities; the scope and proof of

damages are for later proceedings, but I have personal knowledge of efforts to pursue projects and the impact of disputed evidence handling on those efforts.

6. I dispute, as explained in Plaintiff's Evidentiary Objections to Defendant's Declaration of Tyler J. O'Connell and Request for Judicial Notice filed concurrently herewith, that Defendant's request for judicial notice may be used to prove the truth of disputed facts for purposes of the Anti-SLAPP inquiry or to collapse this fraud action into a barred "collateral attack" without the primary-rights and preclusion analysis described in Plaintiff's memorandum of points and authorities filed concurrently herewith.
7. I dispute, for the reasons stated in those objections, that paragraphs in Defendant's supporting declaration that characterize what my claims "arise from," or that state ultimate legal conclusions about Anti-SLAPP protection, are admissible for the truth of those legal conclusions.
8. I am informed of e-filing practices in this court and understand that separate electronic uploads may be required for each lead document under California Rules of Court, rules 2.100 through 2.111, and applicable vendor rules, even when related papers are offered in one filing transaction.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 13, 2026 at San Francisco, California.

Franciscus Dylan Rosario, Plaintiff in pro per

NOTICE RE LINE NUMBERS: The memorandum and Appendix A, when filed as a single instrument, may include judicial council line numbering on those pages. This declaration is filed as a separate instrument **without** line numbers, so pagination and any line grid apply only to the memorandum portion as filed.

Dated: April 13, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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